

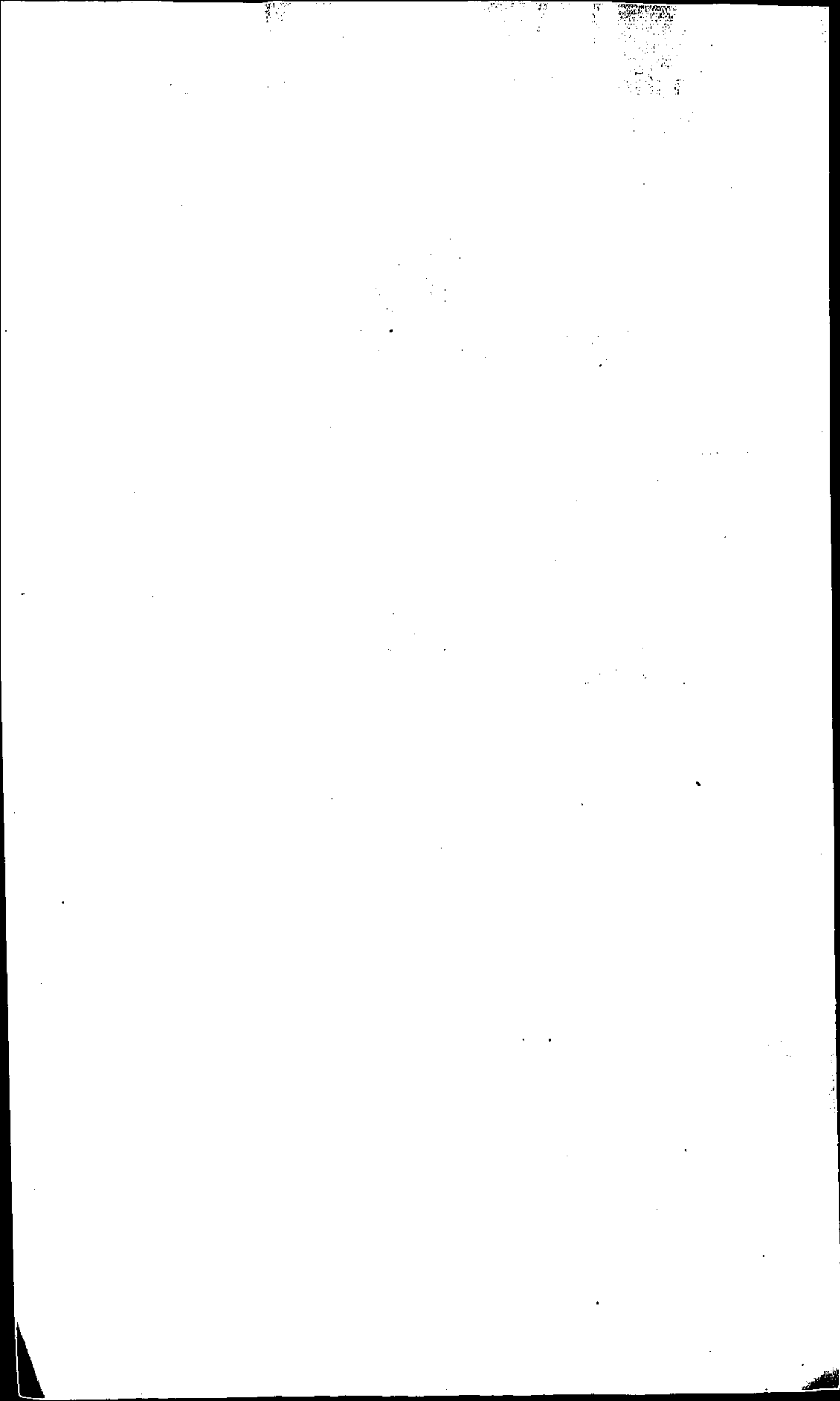
Castle Gate Congregational Church Burial Ground (Nottingham) Act, 1956

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CHAPTER xliii

An Act to authorise the removal of restrictions attaching to the Castle Gate Congregational Church Burial Ground in the city of Nottingham to declare that the trustees of such burial ground have power to sell lands comprising a part thereof to authorise the erection of buildings on the said lands and for other purposes.

[17th May 1956.]

WHEREAS—

(1) The burial ground forming part of the premises held by or in trust for the members for the time being of the Congregational Church worshipping at Castle Gate in the city of Nottingham is a disused burial ground:

(2) The said burial ground is adjacent to property owned by Arnold Hagenbach Estates Limited (hereinafter called "the Company") and that property cannot be fully developed or used otherwise than in conjunction with a part of the said burial ground:

(3) A conditional contract has been entered into by the trustees of the premises of which the burial ground forms part (hereinafter called "the trustees") of the one part and the Company of the other part dated the eighteenth day of November nineteen hundred and fifty-five whereby the trustees have agreed to sell and the Company have agreed to purchase such part of the said burial ground:

(4) It is a term of the said conditional contract that the Company shall at their own expense form metal and complete a passageway on the portion of the said burial ground which is to be retained by the trustees:

(5) It is expedient that the said sale should take place and that the Company should be enabled to develop in conjunction with their adjacent property the part of the said burial ground which they have agreed to purchase and that the said burial ground should be freed from all restrictions which may affect the same by reason of the said burial ground being a disused burial ground:

(6) It is expedient that such provisions as are contained in this Act with respect to the development of the burial ground and the removal therefrom of any human remains interred therein should be enacted:

(7) It is expedient that the other provisions contained in this Act be enacted:

(8) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Castle Gate Congregational Church Burial Ground (Nottingham) Act 1956.

Interpretation.

2.—(1) In this Act unless the subject or context otherwise requires—

“the building land” means the land coloured pink on the signed plan;

“the burial ground” means the piece of land on the north-west side of and fronting to Castle Gate in the city forming the burial ground held in connection with the Castle Gate Congregational Church in the city and shown coloured pink and green on the signed plan;

“the city” means the city of Nottingham and county of the same city;

“the Company” means Arnold Hagenbach Estates Limited and includes their successors in title;

“the conditional contract” means the conditional contract between the trustees of the one part and the Company of the other part dated the eighteenth day of November nineteen hundred and fifty-five for the sale of the building land by the trustees to the Company;

“the date of completion” means the date on which the purchase by the Company in pursuance of section 3 (Purchase of building land by Company) of this Act of the building land is completed;

“enactment” has the same meaning as in the Town and Country Planning Act 1947 ; 10 & 11 Geo. 6.
c. 51.

“the signed plan” means the plan signed in quadruplicate by Sir Rhys Hopkin Morris the chairman of the committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in the office of the Clerk of the Parliaments House of Lords one in the Private Bill Office House of Commons one at the principal office of the Company and one at the Castle Gate Congregational Church in the city ;

“the trustees” means the trustees for the time being appointed pursuant to an indenture relating to the Castle Gate Congregational Church in the city made the twentieth day of December sixteen hundred and eighty-nine.

(2) Copies of or extracts from the signed plan deposited with the Company certified by their secretary to be true shall be received in all courts of justice and elsewhere as evidence of the contents of such plan so far as it relates to the lands shown thereon.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

3.—(1) For the avoidance of doubt it is hereby declared that the trustees have power to sell and the Company to purchase the building land for such price or consideration as may be agreed upon between the trustees and the Company. Purchase of building land by Company.

(2) It shall be lawful for the trustees and the Company to carry into effect the conditional contract.

4. As from the date of completion the burial ground shall be freed and discharged from all trusts uses obligations disabilities and restrictions whatsoever which immediately before the date of completion attached thereto by reason of the burial ground being a disused burial ground and the provisions of the Disused Burial Grounds Act 1884 shall cease to apply to the burial ground. Extinguishment of restrictions affecting burial ground. 47 & 48 Vict. c. 72.

5. Notwithstanding anything contained in any enactment but subject to the provisions of this Act at any time after the date of completion it shall be lawful to use deal with or dispose of—
(1) the building land for building or for any other purpose ;
and Power to use burial ground for building or other purposes.

(2) the remainder of the burial ground for the construction of a passageway or for any other purpose ;

in like manner as if no part thereof had ever been used or set apart for the burial of human remains.

Removal
of human
remains.

6.—(1) Before erecting any building or constructing any passageway on the burial ground the Company shall remove or cause to be removed therefrom the remains of all deceased persons interred therein.

(2) Before proceeding to remove any such remains the Company shall publish in one or more local newspapers circulating in the city a notice of intention so to do at least once during each of two successive weeks with an interval between each publication of at least six days and display a like notice in a conspicuous place in the burial ground and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) At any time within two months after the first publication of such notice any person who is a personal representative or relative of any deceased person in respect of whose remains the Company have published a notice under subsection (2) of this section may give notice in writing to the Company of his intention to undertake the removal of such remains and thereupon he shall be at liberty to cause such remains to be removed to and reinterred or cremated in any burial ground cemetery or crematorium in which burials or cremations may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Company that he is such personal representative or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the Nottingham county court and such county court shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and reinterment or cremation (not exceeding in respect of remains removed from any one grave the sum of thirty-five pounds) shall be defrayed by the Company and such sum shall if necessary be apportioned equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Company in respect of the remains in any grave or if after giving such notice the person giving the same or (as the case may be) the person specified in any order made under subsection (4) of this section shall fail to remove such remains within a period of three months after the first publication of the said notice or within a

period of one month after the making of any order under subsection (4) of this section (whichever is the later) the Company may remove the remains of the deceased person and cause them to be reinterred or cremated in such other burial ground cemetery or crematorium in which burials or cremations may legally take place as the Company think suitable for the purpose.

(7) All memorial stones relating to the remains of any deceased person removed under this section shall at the expense of the Company be removed and replaced at the place of reinterment or cremation of such remains or at such place as the said county court may direct on the application (if any) of such personal representative or relative as aforesaid or failing such application on the application of the Company and the Company shall cause to be made a record of such memorial stones and of their situation when replaced showing the particulars respecting each memorial stone as a separate entry and such record shall be deposited with the Registrar-General.

(8) Any jurisdiction or power conferred on the Nottingham county court by this section may be exercised by the registrar of the court.

(9) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city.

7. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

8. All the costs charges and expenses preliminary and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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Castle Gate Congregational Church 4 & 5 ELIZ. 2
Burial Ground (Nottingham) Act, 1956

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net

PRINTED IN GREAT BRITAIN

(37322)



CHAPTER xliv

An Act to empower the Ipswich Dock Commission to increase their borrowing powers and for other purposes.

[17th May 1956.]

WHEREAS by the Ipswich Dock Act 1852 the Acts relating to the port of Ipswich were consolidated and amended and the Ipswich Dock Commissioners were constituted and incorporated:

And whereas by the Ipswich Dock Act 1913 the commissioners were reconstituted and it was provided that they and their successors should continue incorporated by the name of the Ipswich Dock Commission (hereinafter referred to as "the Commission"):

And whereas by the Ipswich Dock Acts 1852 to 1950 powers and authority have been conferred on the Commission and their predecessors for the improvement of the port of Ipswich:

And whereas under the recited Acts the Commission are authorised to raise for the purposes of their undertaking a total sum not exceeding four hundred and ninety-seven thousand six hundred pounds:

And whereas it is expedient to empower the Commission to raise further moneys for the purposes of their undertaking and to make further provisions with respect to the finances of the Commission:

And whereas it is expedient that the other provisions of this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1. This Act may be cited as the Ipswich Dock Act 1956 and the Ipswich Dock Acts 1852 to 1950 and this Act may be cited together as the Ipswich Dock Acts 1852 to 1956.

Interpretation.

2. In this Act unless there is something in the subject or context repugnant to such construction—

“ the Commission ” means the Ipswich Dock Commission ;

“ the existing Acts ” means the Ipswich Dock Act 1852 the Ipswich Dock Act 1877 the Ipswich Dock Act 1898 the Ipswich Dock Act 1904 the Ipswich Dock Act 1913 the Ipswich Dock Act 1918 and the Ipswich Dock Act 1950 ;

“ the Minister ” means the Minister of Transport and Civil Aviation.

Power to
borrow.

3.—(1) For the general purposes of their undertaking the Commission may in addition to the sums which at the passing of this Act they are authorised to borrow by the existing Acts from time to time borrow and reborrow at interest further moneys not exceeding in the aggregate seven hundred and fifty thousand pounds and for the purpose of securing the repayment of any moneys so borrowed the Commission may mortgage all or any of their property revenues duties dues rates or charges.

(2) The provisions of the Ipswich Dock Act 1913 shall apply and have effect as if the powers given by this section had been added to the power to borrow money conferred upon the Commission by section 71 (Power to borrow) of that Act as extended by section 18 (Power to borrow) of the Ipswich Dock Act 1950:

Provided that—

(i) notwithstanding the provisions of section 75 (Mode of payment off of moneys borrowed) of the same Act of 1913 the Commission shall not be obliged to commence paying off or making provision for payment off of moneys raised in pursuance of the foregoing subsection before the expiration of ten years from the date or dates of borrowing ;

(ii) in the application of the said provisions “ the prescribed period ” shall mean the period prescribed in section 74 (Period for repayment of moneys borrowed) of the Act of 1913 or where the Commission decide not to commence paying off the moneys borrowed for a period of

years in pursuance of the foregoing proviso to this subsection the period commencing from the date when the Commission commence to pay back any moneys so borrowed and ending on a date eighty years from the date of borrowing whichever is the shorter.

4. All moneys borrowed by the Commission under the Application authority of this Act shall be applied by them for the purposes to of moneys. which capital is properly applicable and not otherwise.

5.—(1) The clerk to the Commission shall if and when he is Return to requested by the Minister so to do send to the Minister a return Minister. showing the provision made by the Commission for the repayment of moneys borrowed by them under the authority of this Act.

(2) The return shall—

- (a) show such particulars made up to such date and be in such form as the Minister may require ;
- (b) be certified by the treasurer or other person whose duty it is to keep the accounts of the Commission and if so required by the Minister be verified by statutory declaration made by that person ;
- (c) be sent within one month after the making of the request therefor.

(3) If it appears to the Minister from any return made under this section or otherwise that the Commission—

- (a) have failed to pay any instalment or annual payment required to be paid ; or
- (b) have failed to appropriate to the discharge of any loan any sum required to be so appropriated ; or
- (c) have failed to set apart any sum required for a sinking fund ; or
- (d) have applied any portion of a sinking fund to a purpose other than those authorised ;

the Minister may by order direct that such sum as is specified in the order not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date set out in the order and the Commission shall notify the Minister as soon as the order has been complied with.

(4) An order made under the last preceding subsection may be enforced at the instance of the Minister by mandamus.

(5) If a return required to be made under this section is not made within the time specified in subsection (2) of this section the person in default shall be liable to a penalty not exceeding twenty pounds and notwithstanding the recovery of any such penalty the making of the return may be enforced at the instance of the Minister by mandamus.

Saving for
powers of
Treasury.

6. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses referred to in section 7 (Costs of Act) of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Costs of Act.

7. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Commission.

Table of Statutes referred to in this Act

Short title					Session and chapter
Ipswich Dock Act 1852	...	...	...	...	15 Vict. c. cxvi.
Ipswich Dock Act 1877	...	...	...	...	40 & 41 Vict. c. ccxvi.
Ipswich Dock Act 1898	...	...	...	...	61 & 62 Vict. c. exciii.
Ipswich Dock Act 1904	...	...	...	...	4 Edw. 7. c. xvii.
Ipswich Dock Act 1913	...	...	...	...	3 & 4 Geo. 5. c. cvi.
Ipswich Dock Act 1918	...	...	...	...	8 & 9 Geo. 5. c. lvii.
Borrowing (Control and Guarantees) Act 1946	...	...	...	...	9 & 10 Geo. 6. c. 58.
Ipswich Dock Act 1950	...	...	...	...	14 Geo. 6. c. xlv.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d. net

PRINTED IN GREAT BRITAIN

(37325)